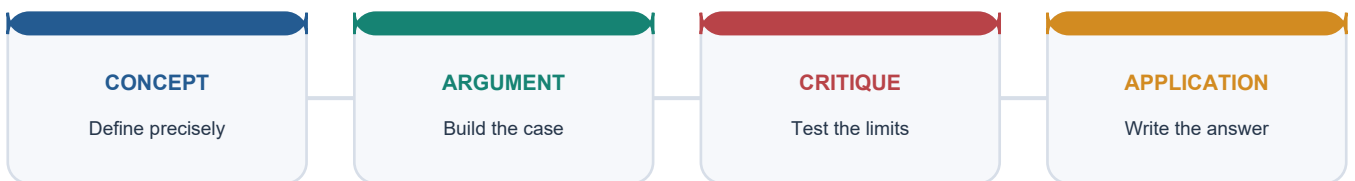


COMPLETE LEARNING SESSION

Lok Adalats and Other Courts - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Lok Adalats and Other Courts - Complete Learning Session	5
LEARNING CONTRACT	5
BASIC LEARNING SESSION	5
SESSION 1 - ARTICLE 39A, ARTICLE 21 AND ACCESS TO JUSTICE	5
SESSION 2 - THE LEGAL-SERVICES AUTHORITY LADDER AND FUNCTIONS	7
SESSION 3 - SECTION 12 ELIGIBILITY AND SECTION 13 ENTITLEMENT	8
SESSION 4 - ORDINARY LOK ADALAT: JURISDICTION AND REFERRAL	10
SESSION 5 - ORDINARY LOK ADALAT: SETTLEMENT, AWARD AND FAILURE	11
SESSION 6 - NATIONAL LOK ADALAT: COORDINATED DRIVE, NOT A NEW COURT	13
SESSION 7 - PERMANENT LOK ADALAT: CHAPTER VI-A JURISDICTION	14
SESSION 8 - PERMANENT LOK ADALAT: CONCILIATION, ADJUDICATION AND AWARD	15
SESSION 9 - ORDINARY LOK ADALAT AND PLA: THE DECISIVE CONTRAST	17
SESSION 10 - FAMILY COURTS ACT, 1984	18
SESSION 11 - GRAM NYAYALAYAS ACT, 2008	20
SESSION 12 - FORUM FIREWALLS, OTHER COURTS AND ANSWER SYNTHESIS	21
BASIC MCQS / REMEDIATION	24
MCQ 1	24
MCQ 2	25
MCQ 3	25
MCQ 4	26
MCQ 5	26
MCQ 6	26
MCQ 7	27
MCQ 8	27
MCQ 9	28
MCQ 10	28
MCQ 11	28
MCQ 12	29
MCQ 13	29

MCQ 14	30
MCQ 15	30
MCQ 16	30
MCQ 17	31
MCQ 18	31
MCQ 19	32
MCQ 20	32
MCQ 21	32
MCQ 22	33
MCQ 23	33
MCQ 24	34
MCQ 25	34
MCQ 26	34
MCQ 27	35
MCQ 28	35
MCQ 29	36
MCQ 30	36
MCQ 31	36
MCQ 32	37
PYQS AND ANSWER PRACTICE	37
Verified PYQ 1 - UPSC Prelims 2020, GS Paper I, Question 9	37
Verified PYQ 2 - UPSC Mains 2023, GS Paper II, Question 2	38
Verified PYQ 3 - UPSC Mains 2024, GS Paper II, Question 2	38
SIX ORIGINAL MAINS MODELS	38
OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER	41
Dispute-system design	41
Consent quality and asymmetric bargaining	41
Digital access	41
Better evaluation metrics	41
CONSOLIDATED REGISTER NOTES	42
Constitutional and case rail	42

1987 Act decoder	42
Ordinary Lok Adalat checklist	42
Permanent Lok Adalat checklist	42
Family Court checklist	43
Gram Nyayalaya checklist	43
Thirty-second answer spine	43

Lok Adalats and Other Courts - Complete Learning Session

Core-first statutory learning session, exact practice, separately labelled optional depth and final register notes

LEARNING CONTRACT

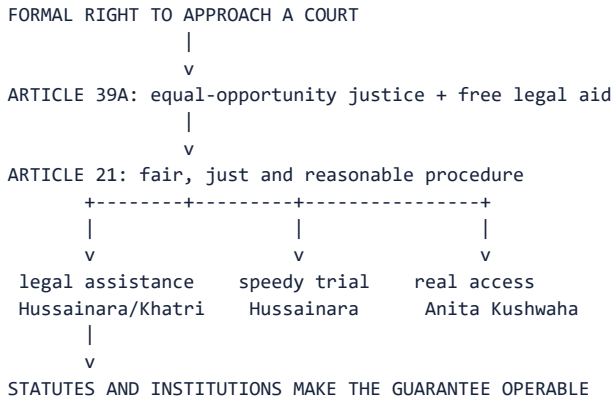
Rule	Application
Visual first	Every Core session begins with a diagram, matrix or decision tree.
Self-contained law	Every Article, section, institution and case used is decoded where introduced.
Answer method	Every Core session includes claim -> named evidence -> analysis -> qualification.
Static accuracy	No current operational count or undated pecuniary ceiling is asserted.
Boundary discipline	Tribunals remain Topic 46; mediation is only distinguished here.
Advanced boundary	Optional enrichment follows all Core teaching and practice.

Sources checked: canonical Polity Core and Optional Advanced Markdown; Constitution of India; Legal Services Authorities Act, 1987; Family Courts Act, 1984; Gram Nyayalayas Act, 2008; repository-verified UPSC routing; and proposition-specific Supreme Court decisions.

BASIC LEARNING SESSION

SESSION 1 - ARTICLE 39A, ARTICLE 21 AND ACCESS TO JUSTICE

VISUAL-FIRST MAP



Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Access to justice means a real, affordable and timely ability to use a lawful adjudicatory or settlement mechanism, not merely the formal existence of courts.

Technical definition: Article 39A is a Directive Principle directing equal justice and free legal aid; Article 21 jurisprudence makes fair procedure, legal assistance in qualifying criminal cases and speedy trial enforceable constitutional requirements.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Article 39A supplies the constitutional destination, while Article 21 jurisprudence converts legal aid and timely justice from charity into conditions of fair procedure.

MUST-WRITE KEYWORDS

- Article 39A

- equal opportunity
- free legal aid
- Article 21
- fair procedure
- speedy trial

CORE EXPLANATION

Article 39A was inserted by the Constitution (Forty-second Amendment) Act, 1976. It directs the State to ensure that the legal system promotes justice on the basis of equal opportunity and, in particular, to provide free legal aid by suitable legislation, schemes or other means so that economic or other disabilities do not deny opportunities for securing justice. Being in Part IV, it is not by itself a freestanding cause of action for every desired forum; legislation and fundamental-rights doctrine give it operational content.

The Article 21 line is proposition-specific:

Case	Exact exam-safe holding
<i>Hussainara Khatoon v State of Bihar</i> (1979)	Speedy trial is implicit in Article 21; free legal service for an accused unable to secure counsel, where the circumstances and needs of justice require and the accused does not object, is an ingredient of reasonable, fair and just procedure. The State cannot excuse denial of speedy trial by financial or administrative inability.
<i>Khatri (II) v State of Bihar</i> (1981)	The legal-aid duty attaches when an indigent accused is first produced before the magistrate and during remand, not only at trial. The magistrate or Sessions Judge must inform an unrepresented indigent accused of the right; the State cannot plead cost or administration.
<i>Suk Das v Union Territory of Arunachal Pradesh</i> (1986)	A conviction following a trial in which an indigent accused was neither informed of nor provided free legal assistance was set aside; the right cannot depend upon an uninformed person making a request.
<i>Anita Kushwaha v Pushap Sudan</i> (2016)	Access to justice is integral to Articles 14 and 21. An effective adjudicatory mechanism, reasonable accessibility, timely adjudication and affordability are essential facets.

These holdings do not mean that every civil dispute automatically attracts State-funded counsel. The statutory entitlement discussed later is governed by Sections 12 and 13 of the 1987 Act.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - meaningful access is a constitutional requirement. Evidence - Article 39A and *Hussainara Khatoon* connect equal justice, legal aid and speedy procedure. Analysis - a right is hollow if poverty, distance or delay prevents its use. Qualification - the applicable remedy and statutory eligibility still depend on the proceeding and governing law.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Article 39A; <i>Hussainara Khatoon</i> (1979); <i>Khatri (II)</i> (1981); <i>Suk Das</i> (1986); <i>Anita Kushwaha</i> (2016).
Prelims trap	Article 39A is a Directive Principle; do not call every legal-aid programme a Fundamental Right created directly by that Article.
Mains use	Use the Constitution-to-statute chain as the introduction to questions on legal aid, Lok Adalats or local justice.

MINI RECAP

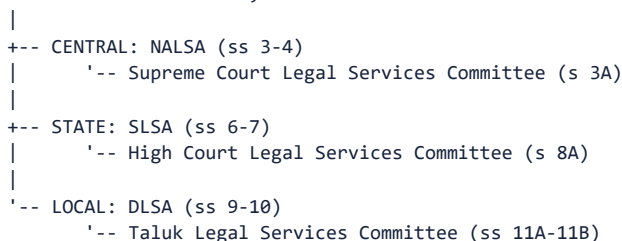
- Article 39A states the equal-justice objective.

- Article 21 protects fair procedure and speedy trial.
- Named cases must be tied to their exact holding.

SESSION 2 - THE LEGAL-SERVICES AUTHORITY LADDER AND FUNCTIONS

VISUAL-FIRST MAP

LEGAL SERVICES AUTHORITIES ACT, 1987



POLICY + FUNDING + SCHEMES -> COURT-SPECIFIC SERVICE -> DISTRICT/TALUK DELIVERY

Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The 1987 Act creates a linked national-to-local network that provides legal services and organises Lok Adalats.

Technical definition: Legal service under Section 2(1)(c) includes service in the conduct of a case or legal proceeding before a court, authority or tribunal and the giving of advice on a legal matter.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

NALSA sets the national policy spine, while court committees and State, district and taluk bodies translate it into forum-specific and local delivery.

MUST-WRITE KEYWORDS

- Legal Services Authorities Act 1987
- NALSA
- SCLSC
- SLSA
- HCLSC
- DLSA
- Taluk Committee

CORE EXPLANATION

The statutory ladder must be decoded rather than memorised as names:

Institution and section	Composition anchor	Core function
National Legal Services Authority, s 3	CJI is Patron-in-Chief; Executive Chairman is a serving or retired Supreme Court judge nominated in the statutory manner	Section 4: policy and principles, economical schemes, fund allocation, social-justice litigation, camps, negotiated settlement, research, legal literacy, clinical education, monitoring and grants
Supreme Court Legal Services Committee, s 3A	Sitting Supreme Court judge as Chairman, nominated by the CJI	Administers legal services for matters before the Supreme Court
State Legal Services Authority, s 6	Chief Justice of the High Court is Patron-in-Chief; Executive Chairman is a serving or retired High Court judge	Section 7: gives effect to Central policy, provides legal services, conducts Lok Adalats and undertakes preventive/strategic legal-aid functions

Institution and section	Composition anchor	Core function
High Court Legal Services Committee, s 8A	Sitting High Court judge as Chairman	Administers legal services for matters before the High Court
District Legal Services Authority, s 9	District Judge is Chairman	Section 10: coordinates district legal services and Taluk Committees, implements programmes and organises Lok Adalats
Taluk Legal Services Committee, s 11A	Senior Civil Judge operating within the taluk is ex officio Chairman	Section 11B: coordinates taluk legal services, organises Lok Adalats and performs assigned functions

NALSA is therefore neither a court nor the sole provider. It is the apex statutory authority in a distributed delivery network. The Supreme Court and High Court Committees are not subordinate courts; they administer legal services for matters before their respective courts.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - legal aid is institutionally decentralised. Evidence - Sections 3 to 11B divide national policy, court-specific administration and district/taluk implementation. Analysis - the ladder can combine uniform standards with local access. Qualification - formal architecture does not itself prove counsel quality, awareness or timely service.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Legal Services Authorities Act, 1987, Sections 2(1)(c), 3, 3A, 4, 6-11B.
Prelims trap	Do not write SALSA for the State authority; the conventional statutory abbreviation is SLSA.
Mains use	In a NALSA answer, separate national functions from SLSA/DLSA/Taluk implementation.

MINI RECAP

- NALSA frames policy and schemes.
- Court committees serve their courts.
- SLSA, DLSA and Taluk bodies carry delivery downward.

SESSION 3 - SECTION 12 ELIGIBILITY AND SECTION 13 ENTITLEMENT

VISUAL-FIRST MAP

STEP 1: DOES THE PERSON FIT SECTION 12?

```
-- SC/ST member
-- trafficking/begar victim
-- woman or child
-- person with disability
-- disaster/violence/atrocity victim
-- industrial workman
-- person in specified custody
-- income below prescribed limit
```

I
V

STEP 2: SECTION 13 - PRIMA FACIE CASE TO PROSECUTE OR DEFEND?

1

+- - - - - + - - - - - +

1

YES

services

1

NO

- statutory entitlement

Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Section 12 identifies alternative eligibility gateways; Section 13 adds a prima facie merits screen for entitlement.

Technical definition: A person falling within any Section 12 category is entitled to legal services if the competent authority is satisfied that the person has a prima facie case to prosecute or defend.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

The 1987 Act uses vulnerability or income as the entry gate and a prima facie case as the entitlement gate; neither gate should be substituted for the other.

MUST-WRITE KEYWORDS

- **Section 12**
- **status-based eligibility**
- **income criterion**
- **custody**
- **Section 13**
- **prima facie case**

CORE EXPLANATION

Section 12 is broader than a poverty-only test. Its categories include: a member of a Scheduled Caste or Scheduled Tribe; a victim of trafficking in human beings or begar referred to in Article 23; a woman or child; a person with disability within the statutory reference; a person affected by mass disaster, ethnic violence, caste atrocity, flood, drought, earthquake or industrial disaster; an industrial workman; a person in custody, including custody in a protective home, juvenile home or psychiatric hospital/nursing home as specified; and a person whose annual income is below the limit prescribed for the relevant forum.

Section 13(1) then requires the authority to be satisfied that the eligible person has a prima facie case to prosecute or defend. Under Section 13(2), an affidavit regarding income may ordinarily be sufficient unless the authority has reason to disbelieve it. The provision does not authorise a full trial at the legal-aid desk; the screen is preliminary.

Legal services include advice and assistance in proceedings, not merely appointment of defence counsel after a criminal trial begins. The constitutional cases explain why early information and assistance may be indispensable where liberty is at stake.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - Section 12 is deliberately plural. Evidence - it recognises status-based vulnerability, custody, disaster exposure, work status and prescribed income. Analysis - equal access sometimes requires categorical protection rather than a single means test. Qualification - Section 13 still requires a prima facie case, and income limits are rule/forum specific rather than one universal figure.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Legal Services Authorities Act, 1987, Sections 12 and 13; Article 23 cross-reference.
Prelims trap	Women, children and several other categories do not become eligible only after proving income below one national threshold.
Mains use	List the Section 12 clusters, then assess NALSA's role; do not mix eligibility with institutional functions.

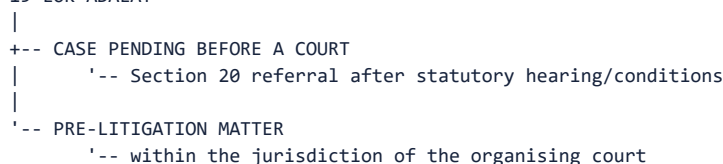
MINI RECAP

- Section 12 contains alternative gateways.
- Section 13 adds the prima facie case test.
- Do not freeze one income limit for every forum.

SESSION 4 - ORDINARY LOK ADALAT: JURISDICTION AND REFERRAL

VISUAL-FIRST MAP

SECTION 19 LOK ADALAT



ABSOLUTE SUBJECT-MATTER BAR: offence not compoundable under law

ROLE: CONCILIATION TOWARD COMPROMISE, NOT TRIAL ON MERITS

Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: An ordinary Lok Adalat is a statutory settlement forum organised under Section 19 for pending cases and eligible pre-litigation matters.

Technical definition: Its jurisdiction mirrors matters within the relevant court's competence but excludes any matter relating to a legally non-compoundable offence.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

An ordinary Lok Adalat receives disputes for settlement, not judicial transfer of the power to decide who should win.

MUST-WRITE KEYWORDS

- Sections 19-20
- pending case
- pre-litigation matter
- compoundable offence
- conciliation
- party hearing

CORE EXPLANATION

Section 19 permits the Supreme Court Legal Services Committee, State Authority, High Court Committee, District Authority and Taluk Committee to organise Lok Adalats at intervals and places they consider appropriate. A bench includes serving or retired judicial officers and other persons with qualifications prescribed under the Act and rules.

The forum may address a case pending before a court or a matter not yet filed but falling within the jurisdiction of the court for which the Lok Adalat is organised. It has no jurisdiction over a matter relating to an offence not compoundable under law. Thus civil claims and compoundable criminal matters may be settlement candidates; non-compoundable criminal liability cannot be settled through this route.

Section 20 permits reference of a pending case where parties agree, one party applies and the court is prima facie satisfied that settlement is possible, or the court considers the matter appropriate. Before a unilateral referral, the court must give parties a reasonable opportunity of being heard. A pre-litigation matter may be referred by the organising authority on an application, again after hearing the other party as required. Referral does not predetermine the terms of compromise.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - jurisdiction precedes settlement. Evidence - Sections 19 and 20 allow pending and pre-litigation matters but exclude non-compoundable offences and prescribe referral safeguards. Analysis - screening protects legality before informality begins. Qualification - eligibility for referral does not guarantee settlement or permit merits adjudication.

EVIDENCE, PRELIMS TRAP AND MAINS USE

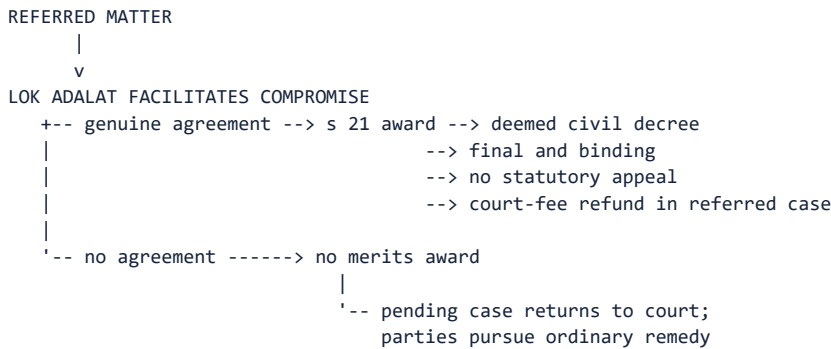
Exam tool	Session-specific use
Named evidence	Legal Services Authorities Act, 1987, Sections 19 and 20.
Prelims trap	Pre-litigation jurisdiction does not mean that every dispute, especially a non-compoundable offence, can be compromised.
Mains use	Use subject matter, stage and referral conditions as the first three headings in an ordinary Lok Adalat answer.

MINI RECAP

- Check court jurisdiction.
- Exclude non-compoundable offences.
- Referral opens conciliation; it does not decide the case.

SESSION 5 - ORDINARY LOK ADALAT: SETTLEMENT, AWARD AND FAILURE

VISUAL-FIRST MAP



Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: An ordinary Lok Adalat award is the statutory embodiment of the parties' compromise, not an independent judicial determination.

Technical definition: Sections 20 and 21 make settlement the source of the award, deem it a civil-court decree, grant finality and bar a statutory appeal.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Consent explains finality: because the award records the parties' own compromise, the Lok Adalat cannot manufacture finality by deciding the merits without them.

MUST-WRITE KEYWORDS

- Section 20
- Section 21
- compromise
- deemed civil decree
- final and binding
- Article 226/227

CORE EXPLANATION

Section 20 requires the Lok Adalat to act with expedition in reaching a compromise or settlement and to be guided by justice, equity, fair play and other legal principles. When settlement is reached, Section 21 treats the award as a decree of a civil court or, as applicable, an order of another court. An award is final and binding on the parties, and no appeal lies to any court. In a pending case referred to Lok Adalat, the court fee paid is refundable in the statutory manner.

When settlement fails, Section 20 requires the record of a pending case to return to the court from which it came, and that court proceeds from the stage reached before referral. In a pre-litigation matter, the parties are advised to seek their remedy in a court. The Lok Adalat cannot substitute a view of a fair result for actual agreement.

In *State of Punjab v Jalour Singh* (2008), the Supreme Court held that an ordinary Lok Adalat has no adjudicatory or judicial function: if compromise fails, it cannot decide merits, and an award must incorporate the settlement agreed by the parties. Because Section 21 supplies no statutory appeal, a genuine award is not reopened as an ordinary appeal. The Court nevertheless recognised a petition under Articles 226/227 on very limited grounds. Absence of genuine consent, fraud, jurisdictional defect or comparable constitutional illegality must therefore be distinguished from a disguised merits appeal.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - an ordinary Lok Adalat's legitimacy is consensual. Evidence - Sections 20-21 and *Jalour Singh* make compromise the precondition of an award. Analysis - finality can reduce litigation because the parties choose the terms. Qualification - no statutory appeal does not extinguish narrowly available constitutional review for foundational defects.

EVIDENCE, PRELIMS TRAP AND MAINS USE

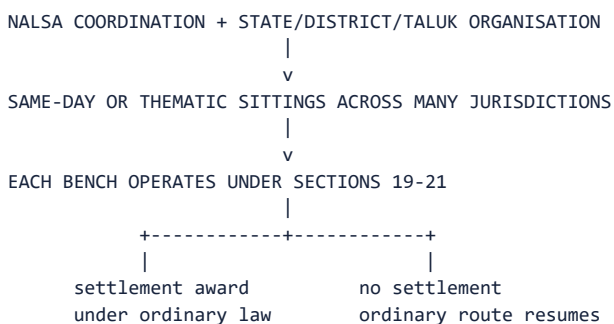
Exam tool	Session-specific use
Named evidence	Sections 20-21; <i>State of Punjab v Jalour Singh</i> (2008).
Prelims trap	A deemed decree is the legal effect of a valid compromise award; it does not give the Lok Adalat power to adjudicate after failure.
Mains use	Pair access benefits with consent, failure route and limited writ review for a balanced answer.

MINI RECAP

- Settlement produces the award.
- Failure returns the matter to the ordinary route.
- Finality is not immunity from every constitutional challenge.

SESSION 6 - NATIONAL LOK ADALAT: COORDINATED DRIVE, NOT A NEW COURT

VISUAL-FIRST MAP



LABEL "NATIONAL" = SCALE AND COORDINATION, NOT A SEPARATE CONSTITUTIONAL COURT

Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A National Lok Adalat is a coordinated nationwide statutory Lok Adalat exercise, not a separate tier in the constitutional court hierarchy.

Technical definition: Its constituent benches remain ordinary Lok Adalats governed by Sections 19-21, including consent, subject-matter limits and failure consequences.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

National scale expands reach; it does not enlarge the legal power of an ordinary Lok Adalat.

MUST-WRITE KEYWORDS

- **National Lok Adalat**
- **coordinated drive**
- **Sections 19-21**
- **ordinary Lok Adalat**
- **consent**
- **no separate court**

CORE EXPLANATION

NALSA may coordinate Lok Adalat sittings across States, districts and court levels on a common date or theme. The administrative label helps mobilisation, listing and public awareness. It does not create a new constitutional court, a new appellate tier or a merits-deciding body.

Each participating bench must still possess jurisdiction over the referred or pre-litigation matter, exclude non-compoundable offences, facilitate voluntary compromise and make an award only on settlement. Volume statistics cannot alter those safeguards. Mega, mobile, continuous, daily and electronic formats likewise describe organisation or mode; they do not change Sections 19-21.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - National Lok Adalat is statutory coordination rather than institutional mutation. Evidence - participating benches derive authority from Sections 19-21. Analysis - common scheduling can improve reach and disposal. Qualification - scale cannot replace genuine consent or create merits power.

EVIDENCE, PRELIMS TRAP AND MAINS USE

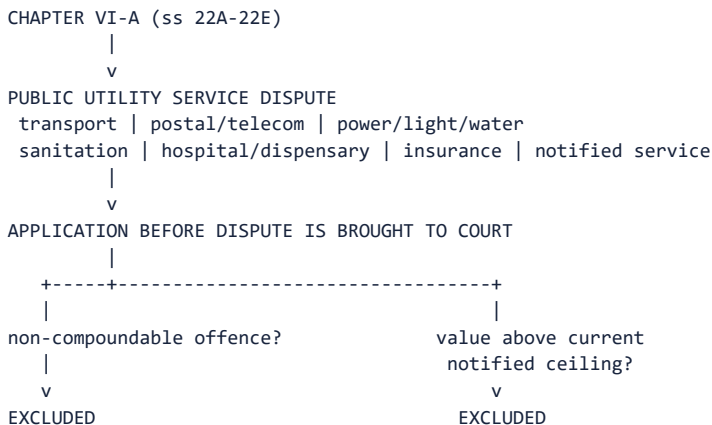
Exam tool	Session-specific use
Named evidence	Legal Services Authorities Act, 1987, Sections 19-21; NALSA's statutory coordinating role.
Prelims trap	Do not describe National Lok Adalat as a constitutional court or as a Permanent Lok Adalat.
Mains use	Use it as an example of access through coordinated administration while retaining the ordinary Lok Adalat safeguards.

MINI RECAP

- National describes coordination.
- The governing power remains Sections 19-21.
- No consent means no ordinary award.

SESSION 7 - PERMANENT LOK ADALAT: CHAPTER VI-A JURISDICTION

VISUAL-FIRST MAP



Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Permanent Lok Adalat is a standing statutory body for pre-litigation disputes concerning public utility services.

Technical definition: Sections 22A-22C confine its jurisdiction by service, stage, offence and the pecuniary amount fixed through the presently applicable notification.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

The word permanent describes the institution, while public utility, pre-litigation status and statutory exclusions define its jurisdiction.

MUST-WRITE KEYWORDS

- Chapter VI-A

- Sections 22A-22E
- public utility service
- pre-litigation
- notified pecuniary limit
- jurisdiction

CORE EXPLANATION

Section 22A defines public utility service to include transport of passengers or goods by air, road or water; postal, telegraph or telephone service; supply of power, light or water; public conservancy or sanitation; hospital or dispensary service; insurance service; and any service declared by the Central or State Government in the public interest by notification. Section 22B authorises the Central or State Authority to establish Permanent Lok Adalats at notified places for one or more such services.

Under Section 22C, a party may apply before the dispute is brought before a court. Once the application is made, no party may invoke the jurisdiction of a court in the same dispute while the statutory process governs it. A matter relating to an offence not compoundable under law is outside jurisdiction. The Act also links pecuniary jurisdiction to an amount notified by the Central Government. Because that ceiling can change through rules or notification, a static learning package should not freeze a rupee figure without a sourced date.

Public utility is a defined statutory category, not a general label for every consumer grievance or every public-sector body.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - PLA jurisdiction is carefully bounded. Evidence - Sections 22A-22C require a public utility service, pre-litigation application, lawful subject matter and the notified pecuniary framework. Analysis - a specialised gateway can resolve recurring essential-service disputes early. Qualification - convenience cannot cure absence of statutory jurisdiction.

EVIDENCE, PRELIMS TRAP AND MAINS USE

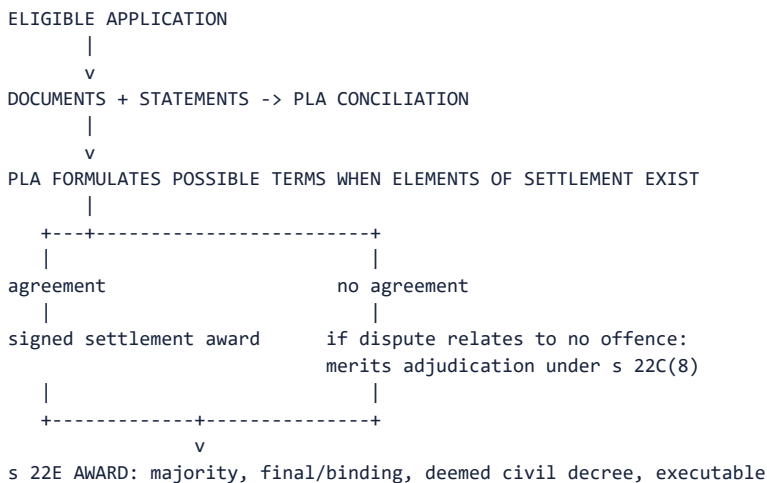
Exam tool	Session-specific use
Named evidence	Legal Services Authorities Act, 1987, Sections 22A, 22B and 22C(1).
Prelims trap	Permanent does not mean universal; the forum is neither for every civil dispute nor for a matter already brought before a court.
Mains use	Open a PLA answer with four filters: service, stage, offence and notified pecuniary jurisdiction.

MINI RECAP

- Defined public utility service.
- Application before court filing.
- Check statutory exclusions and the dated notification.

SESSION 8 - PERMANENT LOK ADALAT: CONCILIATION, ADJUDICATION AND AWARD

VISUAL-FIRST MAP



Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The PLA is a conciliation-cum-adjudication forum: settlement is attempted first, and only an eligible non-offence dispute may be decided on merits after failure.

Technical definition: Sections 22C-22E prescribe a sequenced process, natural-justice-based procedure and a final executable award.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

PLA merits power is exceptional and sequential: first conciliate properly, then adjudicate only what Chapter VI-A permits.

MUST-WRITE KEYWORDS

- Section 22C
- conciliation first
- possible terms
- merits adjudication
- Section 22D
- Section 22E

CORE EXPLANATION

The parties file statements, facts, issues and supporting material. During conciliation the PLA assists them independently and impartially. If it finds elements of settlement, it formulates possible terms and gives them to the parties for observations. Agreement leads to a signed settlement and award. If agreement fails, Section 22C(8) requires the PLA to decide the dispute only where it does not relate to an offence; this is narrower than saying every failed conciliation is adjudicated.

Section 22D frees the PLA from the Code of Civil Procedure and the Indian Evidence Act while binding it to natural justice, objectivity, fair play, equity and other principles of justice. Section 22E makes an award, whether on settlement or merits, final and binding; an award is made by a majority, deemed a decree of a civil court, executable by that court and not open to challenge through an original suit, application or execution proceeding. There is no ordinary statutory appeal, but constitutional review for jurisdictional or natural-justice defects is not erased.

Bar Council of India v Union of India (2012) upheld the Chapter VI-A conciliation-cum-adjudication design. *Canara Bank v G.S. Jayarama* (2022) stressed that the statutory conciliation steps, including formulation of possible terms where appropriate, cannot be skipped before merits adjudication. *InterGlobe Aviation v N. Satchidanand* (2011) is useful for keeping ordinary Lok Adalat and PLA powers separate.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - PLA adjudication is valid because Parliament prescribed a staged and bounded process. Evidence - Sections 22C-22E and *Canara Bank* require conciliation before eligible merits decision. Analysis - the design avoids leaving public-utility disputes unresolved merely because settlement fails. Qualification - natural justice, jurisdiction and constitutional review remain indispensable.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Sections 22C-22E; <i>Bar Council of India</i> (2012); <i>Canara Bank</i> (2022); <i>InterGlobe Aviation</i> (2011).
Prelims trap	Do not say a PLA may decide the merits of a compoundable criminal offence after failed conciliation; Section 22C(8) speaks of a dispute not relating to any offence.
Mains use	Use the statutory sequence to distinguish lawful hybrid adjudication from an ordinary Lok Adalat's compromise-only role.

MINI RECAP

- Conciliation is mandatory first.
- Merits power is confined to eligible non-offence disputes.
- The award is final, executable and constitutionally reviewable on narrow grounds.

SESSION 9 - ORDINARY LOK ADALAT AND PLA: THE DECISIVE CONTRAST

VISUAL-FIRST MAP

Axis	Ordinary Lok Adalat	Permanent Lok Adalat
Statutory home	Chapter VI, ss 19-21	Chapter VI-A, ss 22A-22E
Institutional form	Organised sitting	Standing body
Stage	Pending or eligible pre-litigation	Pre-litigation only
Subject	Within relevant court jurisdiction; no non-compoundable offence	Defined public utility service; statutory exclusions and notified ceiling
First method	Conciliation/compromise	Conciliation under prescribed sequence
If settlement fails	No merits decision	Eligible non-offence dispute may be decided on merits
Award	Compromise embodied as deemed decree	Settlement or merits award deemed decree
Appeal/review	No statutory appeal; narrow writ review	No ordinary statutory appeal; narrow constitutional review

Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Both forums pursue accessible settlement, but only the PLA has a limited post-conciliation statutory power to adjudicate merits.

Technical definition: The difference is created by separate chapters of the same Act and cannot be inferred merely from the adjective permanent.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

The one-line distinction is consent-only ordinary Lok Adalat versus conciliation-first, bounded PLA adjudication.

MUST-WRITE KEYWORDS

- Chapter VI
- Chapter VI-A
- consent
- pre-litigation
- public utility
- merits power

CORE EXPLANATION

A correct comparison uses six questions: Who creates the forum? At what stage can it act? What subject matter may it receive? Is consent necessary for the outcome? Can it decide merits? What is the award and review route?

An ordinary Lok Adalat may receive pending cases, while a PLA cannot receive a dispute already brought before a court. Both exclude matters relating to non-compoundable offences. The ordinary forum stops when compromise fails; the PLA may move to merits only after its statutory conciliation sequence and only for an eligible dispute not relating to an offence. Both awards receive decree-like status and statutory finality, but their juridical sources differ.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - similar names conceal different decisional powers. Evidence - Chapters VI and VI-A create different stage, subject and failure rules. Analysis - precise comparison prevents an unlawful ordinary merits award and an unduly weak description of PLA. Qualification - both remain subject to jurisdictional and constitutional limits.

EVIDENCE, PRELIMS TRAP AND MAINS USE

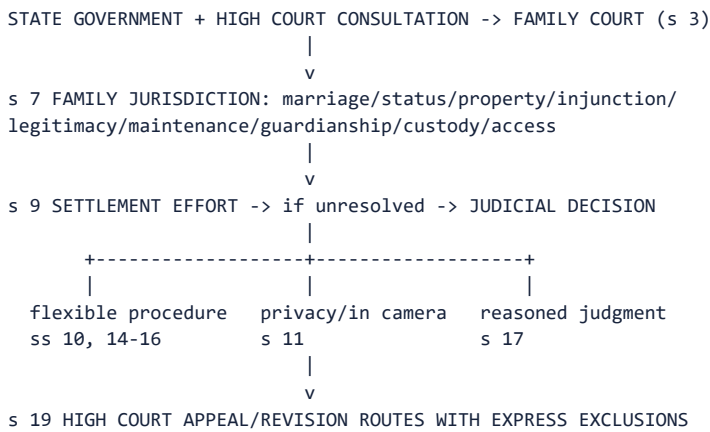
Exam tool	Session-specific use
Named evidence	Legal Services Authorities Act, 1987, Chapters VI and VI-A; <i>Jalour Singh</i> and <i>Canara Bank</i> .
Prelims trap	Do not use award finality as proof that the two bodies exercise identical powers.
Mains use	A table on stage, consent, merits and effect is the highest-yield structure for a 10-marker.

MINI RECAP

- Ordinary: settlement only.
- PLA: public utility, pre-litigation, conciliation first.
- Finality does not erase constitutional legality.

SESSION 10 - FAMILY COURTS ACT, 1984

VISUAL-FIRST MAP



Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Family Court is a specialised statutory court that combines conciliation with judicial determination of defined family disputes.

Technical definition: The Family Courts Act, 1984 reallocates listed civil and maintenance jurisdiction, adapts procedure and creates its own appellate and revisional structure.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Family Courts institutionalise settlement without sacrificing adjudication: conciliation is the first endeavour, not the only lawful outcome.

MUST-WRITE KEYWORDS

- Family Courts Act 1984
- Section 3
- Section 7
- Section 9
- in camera
- Section 19

CORE EXPLANATION

Section 3 requires the State Government, after consultation with the High Court, to establish a Family Court as soon as may be for every city or town whose population exceeds one million and permits establishment in other areas. Section 7 covers nullity, restitution, separation and dissolution; declarations concerning marriage or matrimonial status; property disputes between spouses; injunctions arising from a marital relationship; legitimacy; maintenance; and guardianship, custody or access. It also confers the specified magistrate jurisdiction over maintenance proceedings. Section 8 correspondingly excludes the ordinary district/subordinate court or magistrate jurisdiction in the notified area.

Section 9 makes settlement efforts a duty where consistent with the case. Section 10 applies the CPC to civil proceedings and the criminal procedure governing maintenance proceedings, while allowing the Family Court to devise a procedure to facilitate settlement or truth. Section 11 permits in-camera proceedings and makes them obligatory if either party desires. Section 13 denies representation by a legal practitioner as of right, while permitting the court to seek legal-expert assistance. Sections 14-16 relax receipt and proof of useful material; Section 17 still requires a judgment stating the case, points, decision and reasons.

Under Section 19, a non-interlocutory judgment or order ordinarily goes to the High Court on facts and law within thirty days. A consent decree/order and an order under Chapter IX of the old CrPC are excluded from ordinary appeal; the High Court has the specified revisional power over the latter category. The statutory limits must be stated rather than claiming an unrestricted appeal.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - Family Courts combine relationship-sensitive procedure with judicial authority.

Evidence - Sections 7, 9, 10-17 and 19 provide jurisdiction, conciliation, flexible evidence and reasoned appellate

structure. Analysis - specialisation can reduce adversarial harm while preserving enforceable judgment. Qualification - conciliation, privacy and lawyer restrictions must operate consistently with fairness and access to legal assistance.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Family Courts Act, 1984, Sections 3, 7-11, 13-19.
Prelims trap	A Family Court is not a Lok Adalat: it may adjudicate after settlement efforts fail and its ordinary judgments have a statutory High Court route subject to exclusions.
Mains use	Use purpose, jurisdiction, conciliation, procedure and appeal as five compact headings.

MINI RECAP

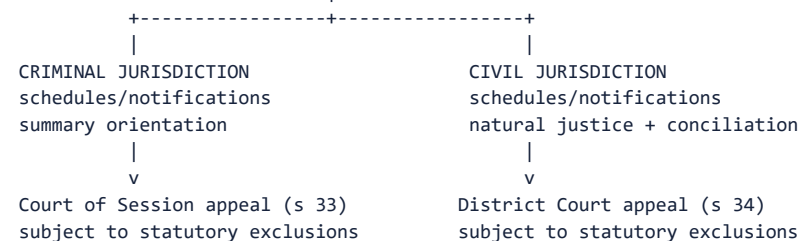
- Specialised statutory court.
- Settlement effort precedes adjudication where appropriate.
- Appeal and revision depend on Section 19's category-specific rules.

SESSION 11 - GRAM NYAYALAYAS ACT, 2008

VISUAL-FIRST MAP

STATE GOVERNMENT MAY ESTABLISH AFTER HIGH COURT CONSULTATION (s 3)

↓
GRAM NYAYALAYA = STATUTORY FIRST-INSTANCE COURT
Nyayadhikari | local territory | mobile sittings (s 9)



Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Gram Nyayalaya is a State-established statutory court of first instance designed to bring specified civil and criminal justice closer to rural communities.

Technical definition: It is created under the Gram Nyayalayas Act, 2008, not under the Constitution's Panchayat provisions, and its jurisdiction comes from schedules and valid notifications.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

Gram Nyayalaya means doorstep judicial access, not customary Panchayat justice.

MUST-WRITE KEYWORDS

- Gram Nyayalayas Act 2008
- Section 3
- High Court consultation
- mobile court
- Schedules
- Sections 33-34

CORE EXPLANATION

Section 3 says that the State Government may, after consultation with the High Court, establish one or more Gram Nyayalayas for every Panchayat at intermediate level or a group of contiguous Panchayats where no intermediate level exists. The enabling word and notification mechanism make establishment State-dependent, not constitutionally compulsory. The State appoints the Nyayadhikari in consultation with the High Court; the appointee must satisfy the statutory qualification for Judicial Magistrate First Class. Section 9 requires mobile sittings in villages within the jurisdiction as part of the access design.

The court exercises both civil and criminal jurisdiction specified through the Act's Schedules and permitted notifications. Criminal procedure is summary-oriented for listed matters. Civil procedure is simplified; the court is guided by natural justice rather than mechanically bound by the CPC, and Section 26 requires an effort at conciliation in civil disputes with the help of conciliators where appropriate. If settlement occurs, judgment follows the agreed terms; otherwise the court adjudicates.

Section 33 sends permitted criminal appeals to the Court of Session, while excluding convictions on a guilty plea and a sentence only of fine up to the statutory threshold. Section 34 sends permitted non-interlocutory civil appeals to the District Court, while excluding consent outcomes and applying low-value limits, including the special question-of-law rule stated in the Act. Appeal periods and finality are statutory. For UPSC, it is safer to state these category limits than to imply an appeal from every order.

Implementation varies by State and time. Without dated official data, do not claim a current national count, universal functionality or a fixed coverage rate.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - Gram Nyayalayas reduce territorial distance through a court, not a non-judicial village body. Evidence - Sections 3, 9, 11-14, 26 and 33-34 combine local establishment, mobile sittings, scheduled jurisdiction, conciliation and appeals. Analysis - proximity can lower transaction costs while retaining adjudication. Qualification - State notification, staffing, infrastructure and awareness determine actual operation.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Gram Nyayalayas Act, 2008, Sections 3, 5-6, 9, 11-14, 24, 26-27 and 33-34.
Prelims trap	Do not call Gram Nyayalayas constitutionally mandatory Panchayat courts or assume their Schedules are immune from statutory notification changes.
Mains use	Balance design strengths with the implementation caveat; avoid unsourced live court counts.

MINI RECAP

- State establishment follows High Court consultation.
- The court may travel, conciliate and adjudicate.
- Jurisdiction and appeals are statutory, not customary.

SESSION 12 - FORUM FIREWALLS, OTHER COURTS AND ANSWER SYNTHESIS

VISUAL-FIRST MAP

Label	Legal character	Correct boundary
Fast Track Court	Additional court capacity through a scheme/administrative arrangement	Not one permanent constitutional species
Special Court	Court created/designated under a parent statute or notification	Powers and appeals come from that parent law
Tribunal	Specialised statutory adjudicatory body	Detailed constitutional doctrine belongs to Topic 46
Mediation	Neutral-assisted party settlement under its governing route	No neutral-imposed merits outcome
Ordinary Lok Adalat	Statutory compromise forum	No merits adjudication
PLA	Public-utility hybrid	Bounded post-conciliation merits power

Visual purpose: the diagram fixes the legal sequence before the explanation.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A forum label is not a jurisdictional answer; source, subject, consent, merits power and review determine legal character.

Technical definition: Fast Track Courts and Special Courts are scheme- or statute-specific, tribunals belong to a separate constitutional field, and mediation follows its own statutory or procedural route.

ANSWER-GRABBING LINE - WRITE/ADAPT IN THE EXAM

In access-to-justice answers, classify before evaluating: the source of power determines what speed, settlement or specialisation may lawfully achieve.

MUST-WRITE KEYWORDS

- forum selection
- parent statute
- Fast Track Courts
- Special Courts
- tribunals
- mediation

CORE EXPLANATION

Fast Track Courts are additional capacity arrangements implemented through government schemes and the States/High Courts; they are not a uniform new constitutional tier. A Special Court exists because a statute or valid notification defines its subject, procedure and appeal. Its title alone proves nothing about jurisdiction.

Tribunals are specialised adjudicatory bodies whose constitutional location, independence and High Court review belong to Topic 46. They should be mentioned only to prevent confusion. Mediation is a separate consensual route in which the neutral facilitates a party-made settlement. It must not be collapsed into an ordinary Lok Adalat award or PLA adjudication.

The complete answer route is preserved below.

ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Constitutional starting point

ARTICLE 39A -> equal-opportunity justice + free legal aid against economic/other disability.
42ND AMENDMENT ACT, 1976 -> inserted Article 39A in Part IV.
ARTICLE 21 -> reasonable, fair and just procedure; speedy trial and qualifying legal aid.
HUSSAINARA (1979) -> speedy trial + legal aid; State cannot plead inability.
KHATRI II (1981) -> duty from first production/remand; judge must inform.
SUK DAS (1986) -> uninformed, unaided indigent accused: conviction/trial vitiated.
ANITA KUSHWAHA (2016) -> effective, accessible, timely and affordable justice.

ASCII MASTER FLOW - PANEL 2/12: Legal-services ladder and meaning

1987 ACT, s 2(1)(c) -> case/proceeding assistance + legal advice.
NALSA (ss 3-4) -> national policy, schemes, funds, literacy, research, monitoring.
SCLSC (s 3A) -> Supreme Court legal services.
LSLA (ss 6-7) -> State implementation, services, Lok Adalats.
HCLSC (s 8A) -> High Court legal services.
DLSA (ss 9-10) -> district programmes + Taluk coordination.
TALUK COMMITTEE (ss 11A-11B) -> local services + Lok Adalats.

ASCII MASTER FLOW - PANEL 3/12: Eligibility and entitlement

SECTION 12 ALTERNATIVE GATES:

SC/ST | trafficking/begar victim | woman/child | disability |
mass disaster/ethnic violence/caste atrocity/flood/drought/earthquake/industrial disaster |
industrial workman | specified custody | income below prescribed limit.
SECTION 13 -> authority must find a prima facie case to prosecute or defend.
INCOME AFFIDAVIT -> ordinarily sufficient unless reason exists to disbelieve.
TRAP -> eligibility is not only a national income test.

ASCII MASTER FLOW - PANEL 4/12: Ordinary Lok Adalat jurisdiction

SECTION 19 -> statutory sitting organised by listed authorities/committees.
PENDING CASE or PRE-LITIGATION MATTER -> must fall within relevant court jurisdiction.
NON-COMPOUNDABLE OFFENCE -> excluded.
SECTION 20 REFERRAL -> agreement/application/court satisfaction + required hearing.
ROLE -> justice/equity/fair-play guided conciliation; no trial on merits.

ASCII MASTER FLOW - PANEL 5/12: Ordinary award and failure

GENUINE COMPROMISE -> s 21 award -> deemed civil-court decree/order.
EFFECT -> final and binding; no statutory appeal; referred court fee refundable.
NO COMPROMISE -> no award and no merits decision.
PENDING CASE -> record returns; court continues from pre-referral stage.
PRE-LITIGATION MATTER -> parties advised to seek ordinary court remedy.
JALOUR SINGH (2008) -> ordinary Lok Adalat is conciliatory, not adjudicatory.
NARROW ARTICLES 226/227 ROUTE -> consent, fraud, jurisdiction or comparable illegality.

ASCII MASTER FLOW - PANEL 6/12: National Lok Adalat

NATIONAL LOK ADALAT -> coordinated statutory drive across jurisdictions.
EACH BENCH -> ordinary Sections 19-21 power.
NATIONAL SCALE != new constitutional court or separate appellate tier.
MEGA/MOBILE/CONTINUOUS/E-LOK ADALAT -> administrative mode, not expanded power.

ASCII MASTER FLOW - PANEL 7/12: PLA jurisdiction

CHAPTER VI-A, ss 22A-22E -> standing public-utility pre-litigation forum.
PUBLIC UTILITY -> transport; postal/telegraph/telephone; power/light/water;
sanitation; hospital/dispensary; insurance; additionally notified service.
APPLICATION -> before dispute reaches court; same-dispute court route barred thereafter.
EXCLUSIONS -> non-compoundable offence + current notified pecuniary framework.
NO UNSOURCED FROZEN RUPEE CEILING.

ASCII MASTER FLOW - PANEL 8/12: PLA sequence and effect

STATEMENTS/DOCUMENTS -> independent and impartial conciliation.
ELEMENTS OF SETTLEMENT -> PLA formulates possible terms -> party observations.
AGREEMENT -> signed settlement award.
NO AGREEMENT -> if dispute relates to no offence, s 22C(8) merits decision.
s 22D -> natural justice/objectivity/fair play/equity; not bound by CPC/Evidence Act.
s 22E -> majority award; final/binding; deemed decree; executable.
CANARA BANK (2022) -> do not skip statutory conciliation before adjudication.

ASCII MASTER FLOW - PANEL 9/12: Ordinary versus Permanent

ORDINARY -> pending/pre-litigation | broad court-linked subject | consent-only outcome.
PLA -> pre-litigation only | defined public utility | conciliation then bounded merits power.
BOTH -> statutory finality + deemed decree + constitutional legality.
INTERGLOBE (2011) -> keep the two mechanisms distinct.
BAR COUNCIL (2012) -> Chapter VI-A design upheld.

ASCII MASTER FLOW - PANEL 10/12: Family Courts

1984 ACT s 3 -> State establishes after High Court consultation.
s 7 -> marriage/status/property/injunction/legitimacy/maintenance/guardianship/custody/access.
s 9 -> settlement endeavour; failure permits adjudication.
ss 10-17 -> adapted procedure, in camera rule, no lawyer as of right, useful evidence, reasons.
s 19 -> High Court appeal from qualifying non-interlocutory orders; consent and maintenance category exclusions plus specified revision route.
FAMILY COURT != compromise-only Lok Adalat.

ASCII MASTER FLOW - PANEL 11/12: Gram Nyayalayas and adjacent forums
2008 ACT s 3 -> State MAY establish after High Court consultation.
s 9 -> mobile court; ss 11-14 -> scheduled/notified civil and criminal jurisdiction.
s 26 -> civil conciliation; failure -> judicial decision.
ss 33-34 -> Session/District appeal routes with statutory exclusions.
GRAM NYAYALAYA != constitutionally mandatory Panchayat court.
FAST TRACK COURT -> capacity scheme; SPECIAL COURT -> parent statute/notification.
TRIBUNALS -> Topic 46; MEDIATION -> separate statutory consensual route.

ASCII MASTER FLOW - PANEL 12/12: Examiner answer route
STEP 1 CONSTITUTION -> Article 39A + Article 21 proposition.
STEP 2 SOURCE -> exact Act, Chapter and Section.
STEP 3 FORUM -> authority, Lok Adalat, PLA, Family Court or Gram Nyayalaya.
STEP 4 FILTER -> stage + subject + consent + merits power.
STEP 5 EFFECT -> settlement/judgment/award + appeal/review.
STEP 6 EVALUATE -> affordability, distance, delay, counsel quality, voluntariness, staffing.
QUALIFIED VERDICT -> plural forums advance access only when jurisdiction and fairness survive.

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

Write the paragraph: Claim - plural justice institutions serve different dispute needs. Evidence - the 1987, 1984 and 2008 Acts allocate different jurisdiction, consent and appeal rules. Analysis - matching a dispute to the lawful forum can reduce cost and delay. Qualification - speed never validates coercive settlement, jurisdictional excess or denial of review.

EVIDENCE, PRELIMS TRAP AND MAINS USE

Exam tool	Session-specific use
Named evidence	Articles 39A and 21; the 1987, 1984 and 2008 Acts; named Supreme Court holdings.
Prelims trap	Do not treat every specialised, fast or settlement-oriented body as a tribunal or Lok Adalat.
Mains use	Use the six-step ASCII route to organise a 20-marker and compress it to source, mechanism, effect and limitation for 10 marks.

MINI RECAP

- Classify the forum.
- State the exact legal effect.
- End with access plus fairness, not disposal numbers alone.

Practice contract: Exactly 32 original MCQs appear before the PYQs. Correct answers rotate A -> B -> C -> D eight times. Every option has a question-specific explanation and every question has a unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1

Which proposition best states Article 39A?

- A. It directs equal-opportunity justice and free legal aid against economic or other disability.
- B. It creates a directly elected national legal-aid court.
- C. It guarantees State-funded counsel in every civil dispute without conditions.
- D. It places Lok Adalats in the constitutional court hierarchy.

Answer: A.

Option-specific explanations:

- **A - Correct:** This states the text's equal-justice and free-legal-aid direction. [MCQ 1, option A: It directs equal-opportunity justice and free legal aid against economic or other disability.]
- **B - Incorrect:** Article 39A creates no elected court. [MCQ 1, option B: It creates a directly elected national legal-aid court.]
- **C - Incorrect:** The Article does not specify unconditional counsel in every civil matter. [MCQ 1, option C: It guarantees State-funded counsel in every civil dispute without conditions.]
- **D - Incorrect:** Lok Adalats are statutory, not constitutional courts. [MCQ 1, option D: It places Lok Adalats in the constitutional court hierarchy.]

Examiner trap 1: A Directive Principle can shape enforceable law without itself creating every institution.

MCQ 2

What did Khatri (II) establish about criminal legal aid?

- A. It begins only when evidence recording starts.
- B. It attaches from first production and remand, with a judicial duty to inform.
- C. It depends entirely on a written application by the accused.
- D. It may be denied whenever the State cites budget constraints.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The judgment rejected a trial-only starting point. [MCQ 2, option A: It begins only when evidence recording starts.]
- **B - Correct:** The Court imposed the early-stage duty and information obligation. [MCQ 2, option B: It attaches from first production and remand, with a judicial duty to inform.]
- **C - Incorrect:** An uninformed indigent accused cannot be expected to demand the right. [MCQ 2, option C: It depends entirely on a written application by the accused.]
- **D - Incorrect:** Financial or administrative inability is not an answer. [MCQ 2, option D: It may be denied whenever the State cites budget constraints.]

Examiner trap 2: Do not postpone legal aid until trial; liberty is at risk at first production.

MCQ 3

Which statement correctly combines Sections 12 and 13?

- A. Every Indian below one national income figure is automatically represented.
- B. Only criminal accused persons are eligible.
- C. A Section 12 category plus a prima facie case supports entitlement.
- D. The authority must decide the entire case before granting aid.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Income thresholds are prescribed and several gateways are status-based. [MCQ 3, option A: Every Indian below one national income figure is automatically represented.]
- **B - Incorrect:** Legal services extend beyond criminal defence. [MCQ 3, option B: Only criminal accused persons are eligible.]
- **C - Correct:** This correctly joins eligibility with the prima facie screen. [MCQ 3, option C: A Section 12 category plus a prima facie case supports entitlement.]
- **D - Incorrect:** Section 13 requires a preliminary assessment, not a trial. [MCQ 3, option D: The authority must decide the entire case before granting aid.]

Examiner trap 3: Eligibility and entitlement are linked but distinct statutory steps.

MCQ 4

Which body administers legal services for matters before the High Court?

- A. NALSA alone.
- B. The DLSA.
- C. The Taluk Committee.
- D. The High Court Legal Services Committee.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** NALSA lays national policy but is not the court-specific committee. [MCQ 4, option A: NALSA alone.]
- **B - Incorrect:** DLSA operates at district level. [MCQ 4, option B: The DLSA.]
- **C - Incorrect:** The Taluk Committee coordinates local delivery. [MCQ 4, option C: The Taluk Committee.]
- **D - Correct:** Section 8A creates the court-specific committee. [MCQ 4, option D: The High Court Legal Services Committee.]

Examiner trap 4: Match each committee to the court before which the matter is pending.

MCQ 5

An ordinary Lok Adalat may take cognizance of

- A. a pending civil case or eligible pre-litigation matter within court jurisdiction.
- B. every non-compoundable criminal prosecution.
- C. only disputes already decided by a High Court.
- D. any matter regardless of territorial or subject jurisdiction.

Answer: A.

Option-specific explanations:

- **A - Correct:** Sections 19-20 permit both listed stages within jurisdiction. [MCQ 5, option A: a pending civil case or eligible pre-litigation matter within court jurisdiction.]
- **B - Incorrect:** Non-compoundable offences are expressly excluded. [MCQ 5, option B: every non-compoundable criminal prosecution.]
- **C - Incorrect:** The forum is not confined to finally decided cases. [MCQ 5, option C: only disputes already decided by a High Court.]
- **D - Incorrect:** Informality does not eliminate jurisdiction. [MCQ 5, option D: any matter regardless of territorial or subject jurisdiction.]

Examiner trap 5: Pre-litigation breadth remains bounded by the organising court's jurisdiction.

MCQ 6

If compromise fails in an ordinary Lok Adalat, it must

- A. issue the result it considers equitable.
- B. return the pending matter or advise the pre-litigation parties to use the ordinary remedy.
- C. convert itself into a Permanent Lok Adalat.
- D. send every matter directly to the Supreme Court.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Justice and equity guide conciliation, not unilateral merits decision. [MCQ 6, option A: issue the result it considers equitable.]
- **B - Correct:** Section 20 specifies the failure route. [MCQ 6, option B: return the pending matter or advise the pre-litigation parties to use the ordinary remedy.]
- **C - Incorrect:** The two institutions have separate statutory foundations. [MCQ 6, option C: convert itself into a Permanent Lok Adalat.]
- **D - Incorrect:** No such automatic constitutional transfer exists. [MCQ 6, option D: send every matter directly to the Supreme Court.]

Examiner trap 6: A failed settlement produces a route back, not a Lok Adalat judgment.

MCQ 7

Under Section 21, a valid ordinary Lok Adalat award is

- A. merely a non-binding recommendation.
- B. appealable as of right to the District Court.
- C. deemed a civil-court decree and final and binding without statutory appeal.
- D. valid even without any settlement.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** The statute gives the award binding decree status. [MCQ 7, option A: merely a non-binding recommendation.]
- **B - Incorrect:** Section 21 bars an ordinary statutory appeal. [MCQ 7, option B: appealable as of right to the District Court.]
- **C - Correct:** This states the award's legal effect. [MCQ 7, option C: deemed a civil-court decree and final and binding without statutory appeal.]
- **D - Incorrect:** *Jalour Singh* makes agreement foundational. [MCQ 7, option D: valid even without any settlement.]

Examiner trap 7: Decree status follows a valid compromise; it does not create merits power.

MCQ 8

Which is the narrow lawful route against a defective Lok Adalat award?

- A. A routine first appeal on facts.
- B. A fresh original suit in every case.
- C. Automatic revision by NALSA.
- D. Constitutional review on limited foundational grounds.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The statute excludes a regular appeal. [MCQ 8, option A: A routine first appeal on facts.]
- **B - Incorrect:** Finality cannot be bypassed by an ordinary suit as a general rule. [MCQ 8, option B: A fresh original suit in every case.]
- **C - Incorrect:** NALSA is not a revisional court. [MCQ 8, option C: Automatic revision by NALSA.]
- **D - Correct:** Fraud, absent consent or jurisdictional illegality may support narrow writ review. [MCQ 8, option D: Constitutional review on limited foundational grounds.]

Examiner trap 8: No statutory appeal is not the same as no constitutional remedy whatsoever.

MCQ 9

What is the legal character of a National Lok Adalat?

- A. A coordinated exercise of ordinary statutory Lok Adalat benches.
- B. A new court above all High Courts.
- C. A Permanent Lok Adalat for every sector.
- D. A tribunal under Part XIV-A.

Answer: A.

Option-specific explanations:

- **A - Correct:** National describes coordination and scale under the same statute. [MCQ 9, option A: A coordinated exercise of ordinary statutory Lok Adalat benches.]
- **B - Incorrect:** No constitutional appellate tier is created. [MCQ 9, option B: A new court above all High Courts.]
- **C - Incorrect:** PLA jurisdiction remains separately limited to public utility disputes. [MCQ 9, option C: A Permanent Lok Adalat for every sector.]
- **D - Incorrect:** Part XIV-A tribunals are a different topic. [MCQ 9, option D: A tribunal under Part XIV-A.]

Examiner trap 9: Administrative scale never enlarges Sections 19-21 powers.

MCQ 10

Which dispute fits the PLA gateway?

- A. A civil appeal already pending in court.
- B. A pre-litigation dispute concerning a defined public utility service within statutory limits.
- C. A prosecution for a non-compoundable offence.
- D. Any employment dispute merely because one party is a public corporation.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** PLA is pre-litigation. [MCQ 10, option A: A civil appeal already pending in court.]
- **B - Correct:** This satisfies stage and subject filters. [MCQ 10, option B: A pre-litigation dispute concerning a defined public utility service within statutory limits.]
- **C - Incorrect:** The statute excludes non-compoundable offences. [MCQ 10, option C: A prosecution for a non-compoundable offence.]
- **D - Incorrect:** Public ownership does not itself create public-utility jurisdiction. [MCQ 10, option D: Any employment dispute merely because one party is a public corporation.]

Examiner trap 10: Test service, stage, offence and the notified pecuniary framework separately.

MCQ 11

After PLA conciliation fails, Section 22C(8) permits merits decision when

- A. the chairperson dislikes a party's offer.
- B. the dispute is already before another court.
- C. the eligible dispute does not relate to an offence.
- D. the matter is a non-compoundable prosecution.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Subjective dissatisfaction is not the statutory test. [MCQ 11, option A: the chairperson dislikes a party's offer.]

- **B - Incorrect:** The application must precede court proceedings. [MCQ 11, option B: the dispute is already before another court.]
- **C - Correct:** This is the express post-conciliation condition. [MCQ 11, option C: the eligible dispute does not relate to an offence.]
- **D - Incorrect:** Non-compoundable offences are excluded at the jurisdictional gate. [MCQ 11, option D: the matter is a non-compoundable prosecution.]

Examiner trap 11: Do not convert 'compoundable offence may enter conciliation' into 'offence may be adjudicated on merits'.

MCQ 12

Section 22D means that the PLA

- A. may ignore natural justice.
- B. must follow every CPC formality.
- C. must apply the Evidence Act mechanically.
- D. is guided by natural justice and equity though not bound by CPC or Evidence Act.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Natural justice is expressly central. [MCQ 12, option A: may ignore natural justice.]
- **B - Incorrect:** The statute releases the PLA from strict CPC binding. [MCQ 12, option B: must follow every CPC formality.]
- **C - Incorrect:** The Evidence Act is likewise not binding. [MCQ 12, option C: must apply the Evidence Act mechanically.]
- **D - Correct:** This states both flexibility and fairness. [MCQ 12, option D: is guided by natural justice and equity though not bound by CPC or Evidence Act.]

Examiner trap 12: Procedural flexibility is not procedural lawlessness.

MCQ 13

Which statement about a PLA pecuniary ceiling is safest?

- A. Use the amount fixed by the currently applicable notification and date the source.
- B. The 1987 Act permanently freezes one rupee figure.
- C. Every State may disregard the Central notification.
- D. Pecuniary jurisdiction is irrelevant to PLA competence.

Answer: A.

Option-specific explanations:

- **A - Correct:** The Act uses a notification-sensitive framework. [MCQ 13, option A: Use the amount fixed by the currently applicable notification and date the source.]
- **B - Incorrect:** A static figure may become stale. [MCQ 13, option B: The 1987 Act permanently freezes one rupee figure.]
- **C - Incorrect:** The statutory allocation cannot be ignored. [MCQ 13, option C: Every State may disregard the Central notification.]
- **D - Incorrect:** Value is an express jurisdictional filter. [MCQ 13, option D: Pecuniary jurisdiction is irrelevant to PLA competence.]

Examiner trap 13: Never reproduce an undated ceiling as permanently fixed statutory text.

MCQ 14

Which sequence is mandatory before PLA merits adjudication?

- A. Direct judgment followed by optional mediation.
- B. Conciliation, possible settlement terms where appropriate, then eligible adjudication after failure.
- C. Arbitration agreement followed by an arbitral award.
- D. Reference from a pending civil court after trial.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** The statutory sequence does not begin with judgment. [MCQ 14, option A: Direct judgment followed by optional mediation.]
- **B - Correct:** *Canara Bank* reinforces this conciliation-first route. [MCQ 14, option B: Conciliation, possible settlement terms where appropriate, then eligible adjudication after failure.]
- **C - Incorrect:** PLA jurisdiction does not depend on an arbitration agreement. [MCQ 14, option C: Arbitration agreement followed by an arbitral award.]
- **D - Incorrect:** The route is pre-litigation. [MCQ 14, option D: Reference from a pending civil court after trial.]

Examiner trap 14: A PLA cannot treat conciliation as a decorative formality.

MCQ 15

What is common to ordinary and Permanent Lok Adalat awards?

- A. Both always require consent.
- B. Both arise only in pending cases.
- C. Both receive deemed-decree status and statutory finality.
- D. Both decide criminal offences on merits.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** PLA may adjudicate an eligible non-offence dispute after failed conciliation. [MCQ 15, option A: Both always require consent.]
- **B - Incorrect:** PLA is pre-litigation, while ordinary sittings may receive pending cases. [MCQ 15, option B: Both arise only in pending cases.]
- **C - Correct:** This is the principal shared legal effect. [MCQ 15, option C: Both receive deemed-decree status and statutory finality.]
- **D - Incorrect:** Neither proposition about criminal merits is correct. [MCQ 15, option D: Both decide criminal offences on merits.]

Examiner trap 15: Shared finality must not conceal different sources of decisional power.

MCQ 16

Which proposition follows from *Jalour Singh*?

- A. Ordinary Lok Adalats may impose equitable compensation.
- B. Counsel consent is never relevant.
- C. Every award is immune from writ jurisdiction.
- D. Without compromise, an ordinary Lok Adalat has no award and no merits power.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Equity guides settlement rather than adjudication. [MCQ 16, option A: Ordinary Lok Adalats may impose equitable compensation.]
- **B - Incorrect:** The compromise must genuinely bind the parties. [MCQ 16, option B: Counsel consent is never relevant.]
- **C - Incorrect:** The Court recognised limited Articles 226/227 challenge. [MCQ 16, option C: Every award is immune from writ jurisdiction.]
- **D - Correct:** This is the case's central holding. [MCQ 16, option D: Without compromise, an ordinary Lok Adalat has no award and no merits power.]

Examiner trap 16: Do not cite *Jalour Singh* for PLA's distinct Chapter VI-A power.

MCQ 17

The principal function of Section 9 of the Family Courts Act is to

- A. require settlement efforts where consistent with the case.
- B. abolish adjudication of family disputes.
- C. make lawyers compulsory in every proceeding.
- D. transfer every family dispute to Lok Adalat.

Answer: A.

Option-specific explanations:

- **A - Correct:** The section makes conciliation an institutional duty. [MCQ 17, option A: require settlement efforts where consistent with the case.]
- **B - Incorrect:** Unresolved disputes remain judicially decidable. [MCQ 17, option B: abolish adjudication of family disputes.]
- **C - Incorrect:** Section 13 says representation is not a right as of course. [MCQ 17, option C: make lawyers compulsory in every proceeding.]
- **D - Incorrect:** Family Court jurisdiction remains distinct. [MCQ 17, option D: transfer every family dispute to Lok Adalat.]

Examiner trap 17: Conciliation orientation does not make the Family Court a compromise-only body.

MCQ 18

Which is within Section 7 Family Court jurisdiction?

- A. A constitutional challenge to a Union tax.
- B. Custody, maintenance and specified matrimonial or inter-spousal disputes.
- C. Every corporate insolvency proceeding.
- D. A criminal appeal from a Sessions Court.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Tax constitutional review lies elsewhere. [MCQ 18, option A: A constitutional challenge to a Union tax.]
- **B - Correct:** These are central statutory categories. [MCQ 18, option B: Custody, maintenance and specified matrimonial or inter-spousal disputes.]
- **C - Incorrect:** Insolvency is outside the listed family jurisdiction. [MCQ 18, option C: Every corporate insolvency proceeding.]
- **D - Incorrect:** The Family Court is not an appellate criminal court. [MCQ 18, option D: A criminal appeal from a Sessions Court.]

Examiner trap 18: Use the statutory relationship-based categories rather than the vague phrase 'all family problems'.

MCQ 19

Which statement about Family Court procedure is correct?

- A. All hearings must always be public.
- B. A party has an absolute right to any lawyer chosen.
- C. In-camera hearing is mandatory if either party desires it.
- D. The court need not state reasons.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Section 11 permits privacy. [MCQ 19, option A: All hearings must always be public.]
- **B - Incorrect:** Section 13 denies representation as of right. [MCQ 19, option B: A party has an absolute right to any lawyer chosen.]
- **C - Correct:** This is the express privacy safeguard. [MCQ 19, option C: In-camera hearing is mandatory if either party desires it.]
- **D - Incorrect:** Section 17 requires a reasoned judgment. [MCQ 19, option D: The court need not state reasons.]

Examiner trap 19: Flexible evidence and private hearing do not remove the duty to decide fairly and give reasons.

MCQ 20

Under Section 19 of the Family Courts Act, which outcome is excluded from ordinary appeal?

- A. Every final judgment.
- B. Every contested divorce decree.
- C. Every property order.
- D. A decree or order passed with parties' consent.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Qualifying non-interlocutory judgments are ordinarily appealable. [MCQ 20, option A: Every final judgment.]
- **B - Incorrect:** A contested final decree is not categorically excluded. [MCQ 20, option B: Every contested divorce decree.]
- **C - Incorrect:** Property orders depend on the statutory conditions. [MCQ 20, option C: Every property order.]
- **D - Correct:** Consent outcomes fall within the express bar. [MCQ 20, option D: A decree or order passed with parties' consent.]

Examiner trap 20: State the maintenance-category revision route separately from the ordinary appeal.

MCQ 21

Who establishes a Gram Nyayalaya under Section 3?

- A. The State Government after consultation with the High Court.
- B. The village Panchayat without State notification.
- C. NALSA by national order.
- D. Parliament separately for every village.

Answer: A.

Option-specific explanations:

- **A - Correct:** This is the statutory establishment route. [MCQ 21, option A: The State Government after consultation with the High Court.]
- **B - Incorrect:** A Panchayat cannot create the court by itself. [MCQ 21, option B: The village Panchayat without State notification.]
- **C - Incorrect:** NALSA administers legal services, not Gram Nyayalaya creation. [MCQ 21, option C: NALSA by national order.]
- **D - Incorrect:** The central Act enables State notification. [MCQ 21, option D: Parliament separately for every village.]

Examiner trap 21: The Act says the State may establish; do not present universal operation as constitutionally compulsory.

MCQ 22

What makes the Gram Nyayalaya a mobile-access institution?

- A. Its judgments circulate between High Courts.
- B. The Nyayadhikari holds mobile courts in villages within jurisdiction.
- C. Every party must file only online.
- D. Its jurisdiction follows any litigant nationwide.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Appellate circulation is not mobility. [MCQ 22, option A: Its judgments circulate between High Courts.]
- **B - Correct:** Section 9 provides local mobile sittings. [MCQ 22, option B: The Nyayadhikari holds mobile courts in villages within jurisdiction.]
- **C - Incorrect:** The Act does not impose online-only access. [MCQ 22, option C: Every party must file only online.]
- **D - Incorrect:** Territorial jurisdiction remains statutory. [MCQ 22, option D: Its jurisdiction follows any litigant nationwide.]

Examiner trap 22: Mobile sitting reduces distance; it does not erase territorial limits.

MCQ 23

Gram Nyayalaya civil and criminal jurisdiction comes primarily from

- A. customary village opinion.
- B. any dispute chosen by the Nyayadhikari.
- C. the Act's Schedules and authorised notifications.
- D. a National Lok Adalat calendar.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Custom cannot create statutory jurisdiction. [MCQ 23, option A: customary village opinion.]
- **B - Incorrect:** Judicial preference cannot replace legal competence. [MCQ 23, option B: any dispute chosen by the Nyayadhikari.]
- **C - Correct:** This is the correct source. [MCQ 23, option C: the Act's Schedules and authorised notifications.]
- **D - Incorrect:** Lok Adalat scheduling is irrelevant. [MCQ 23, option D: a National Lok Adalat calendar.]

Examiner trap 23: Schedules may be lawfully altered; avoid treating a textbook list as permanently exhaustive.

MCQ 24

Which appellate pairing is correct for Gram Nyayalayas?

- A. Civil to Supreme Court; criminal to High Court.
- B. Both directly to High Court.
- C. Both to DLSA.
- D. Criminal to Court of Session and civil to District Court, subject to exclusions.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** The Act creates closer appellate routes. [MCQ 24, option A: Civil to Supreme Court; criminal to High Court.]
- **B - Incorrect:** There is no universal direct High Court appeal. [MCQ 24, option B: Both directly to High Court.]
- **C - Incorrect:** DLSA is not an appellate court. [MCQ 24, option C: Both to DLSA.]
- **D - Correct:** Sections 33-34 state this pairing. [MCQ 24, option D: Criminal to Court of Session and civil to District Court, subject to exclusions.]

Examiner trap 24: Appeals are category-limited; do not promise an appeal from every order.

MCQ 25

Fast Track Courts are best described as

- A. additional court capacity under scheme/administrative arrangements.
- B. a permanent constitutional tier created by Article 39A.
- C. the same institution as Permanent Lok Adalat.
- D. tribunals under Article 323A.

Answer: A.

Option-specific explanations:

- **A - Correct:** Their legal character follows the scheme and existing judicial administration. [MCQ 25, option A: additional court capacity under scheme/administrative arrangements.]
- **B - Incorrect:** Article 39A creates no such tier. [MCQ 25, option B: a permanent constitutional tier created by Article 39A.]
- **C - Incorrect:** PLA has defined statutory public-utility jurisdiction. [MCQ 25, option C: the same institution as Permanent Lok Adalat.]
- **D - Incorrect:** Administrative tribunals are separate. [MCQ 25, option D: tribunals under Article 323A.]

Examiner trap 25: The adjective fast describes case-management capacity, not a new species of court.

MCQ 26

A Special Court's jurisdiction is determined by

- A. its popular name alone.
- B. the parent statute and valid designation or notification.
- C. NALSA policy irrespective of legislation.
- D. an ordinary Lok Adalat settlement.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** A title has no independent jurisdictional force. [MCQ 26, option A: its popular name alone.]
- **B - Correct:** This supplies the lawful source and scope. [MCQ 26, option B: the parent statute and valid designation or notification.]

- **C - Incorrect:** NALSA cannot create unrelated criminal or civil jurisdiction. [MCQ 26, option C: NALSA policy irrespective of legislation.]
- **D - Incorrect:** Settlement cannot constitute a Special Court. [MCQ 26, option D: an ordinary Lok Adalat settlement.]

Examiner trap 26: Always name the parent law before describing a Special Court's powers.

MCQ 27

How does mediation differ from an ordinary Lok Adalat?

- A. The mediator may impose a decree after failure.
- B. Mediation necessarily handles criminal prosecution.
- C. Mediation facilitates a party-made settlement under its governing route; ordinary Lok Adalat records compromise as a statutory award.
- D. There is no legal distinction.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** A mediator does not adjudicate merely because talks fail. [MCQ 27, option A: The mediator may impose a decree after failure.]
- **B - Incorrect:** Criminal scope depends on law and cannot be assumed. [MCQ 27, option B: Mediation necessarily handles criminal prosecution.]
- **C - Correct:** This identifies the distinct source and effect. [MCQ 27, option C: Mediation facilitates a party-made settlement under its governing route; ordinary Lok Adalat records compromise as a statutory award.]
- **D - Incorrect:** The regimes are legally different. [MCQ 27, option D: There is no legal distinction.]

Examiner trap 27: Shared consent does not make every settlement process identical.

MCQ 28

Where should detailed tribunal doctrine be developed for this syllabus?

- A. Inside every Lok Adalat answer.
- B. As a form of Gram Nyayalaya.
- C. As a Family Court subsection.
- D. In Topic 46, with only a boundary distinction here.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** That would blur statutory institutions. [MCQ 28, option A: Inside every Lok Adalat answer.]
- **B - Incorrect:** A tribunal is not a rural first-instance court by definition. [MCQ 28, option B: As a form of Gram Nyayalaya.]
- **C - Incorrect:** Family Courts are statutory courts. [MCQ 28, option C: As a Family Court subsection.]
- **D - Correct:** This preserves syllabus ownership. [MCQ 28, option D: In Topic 46, with only a boundary distinction here.]

Examiner trap 28: Cross-reference tribunals; do not duplicate or collapse their constitutional doctrine.

MCQ 29

Which answer best applies *Anita Kushwaha*?

- A. Assess whether justice mechanisms are effective, reasonably accessible, timely and affordable.
- B. Treat settlement totals as the only success measure.
- C. Assume any online platform guarantees access.
- D. Conclude that physical distance is constitutionally irrelevant.

Answer: A.

Option-specific explanations:

- **A - Correct:** These are the access facets identified by the Court. [MCQ 29, option A: Assess whether justice mechanisms are effective, reasonably accessible, timely and affordable.]
- **B - Incorrect:** Disposal alone says nothing about fairness or durability. [MCQ 29, option B: Treat settlement totals as the only success measure.]
- **C - Incorrect:** Digital exclusion may obstruct access. [MCQ 29, option C: Assume any online platform guarantees access.]
- **D - Incorrect:** Reasonable accessibility includes distance. [MCQ 29, option D: Conclude that physical distance is constitutionally irrelevant.]

Examiner trap 29: Access is multidimensional; one favourable metric cannot substitute for the full test.

MCQ 30

Which statement best evaluates digital Lok Adalat or mediation formats?

- A. They automatically cure unequal bargaining power.
- B. They may reduce travel but require privacy, language, disability and offline safeguards.
- C. They convert settlement into compulsory adjudication.
- D. They remove the need for legal advice.

Answer: B.

Option-specific explanations:

- **A - Incorrect:** Technology can reproduce rather than cure power asymmetry. [MCQ 30, option A: They automatically cure unequal bargaining power.]
- **B - Correct:** This gives both benefit and qualification. [MCQ 30, option B: They may reduce travel but require privacy, language, disability and offline safeguards.]
- **C - Incorrect:** Mode does not alter the legal nature of settlement. [MCQ 30, option C: They convert settlement into compulsory adjudication.]
- **D - Incorrect:** Advice may be more important where digital literacy is weak. [MCQ 30, option D: They remove the need for legal advice.]

Examiner trap 30: Digital convenience must not become a new eligibility barrier.

MCQ 31

Which metric best tests legal-aid quality?

- A. Only the number of camps held.
- B. Only the number of disposed cases.
- C. Timeliness, competent assistance, informed consent and durable outcomes.
- D. Only the size of the publicity budget.

Answer: C.

Option-specific explanations:

- **A - Incorrect:** Camp counts do not establish effective assistance. [MCQ 31, option A: Only the number of camps held.]
- **B - Incorrect:** Disposal may conceal pressure or repeat litigation. [MCQ 31, option B: Only the number of disposed cases.]
- **C - Correct:** These measures connect service to justice quality. [MCQ 31, option C: Timeliness, competent assistance, informed consent and durable outcomes.]
- **D - Incorrect:** Spending alone is not an outcome. [MCQ 31, option D: Only the size of the publicity budget.]

Examiner trap 31: Input and disposal statistics must be connected to representation quality and user outcomes.

MCQ 32

Which integrated conclusion is most accurate?

- A. Every access forum should replace ordinary courts.
- B. Finality is more important than consent.
- C. Local forums need no appellate or constitutional safeguards.
- D. Plural forums advance access only when jurisdiction, voluntariness, competence and review are preserved.

Answer: D.

Option-specific explanations:

- **A - Incorrect:** Courts remain essential for coercive relief and adjudication. [MCQ 32, option A: Every access forum should replace ordinary courts.]
- **B - Incorrect:** Consent is foundational to ordinary Lok Adalat legitimacy. [MCQ 32, option B: Finality is more important than consent.]
- **C - Incorrect:** Statutory and constitutional legality remain necessary. [MCQ 32, option C: Local forums need no appellate or constitutional safeguards.]
- **D - Correct:** This is the balanced constitutional conclusion. [MCQ 32, option D: Plural forums advance access only when jurisdiction, voluntariness, competence and review are preserved.]

Examiner trap 32: A high-scoring conclusion joins accessibility to fairness rather than treating them as rivals.

PYQS AND ANSWER PRACTICE

Verified PYQ 1 - UPSC Prelims 2020, GS Paper I, Question 9

Question: In India, Legal Services Authorities provide free legal services to which of the following type of citizens?

1. Person with an annual income of less than Rs. 1,00,000
 2. Transgender with an annual income of less than Rs. 2,00,000
 3. Member of Other Backward Classes (OBC) with an annual income of less than Rs. 3,00,000
 4. All Senior Citizens
- A. 1 and 2 only B. 3 and 4 only C. 2 and 3 only D. 1 and 4 only

Answer withheld pending official UPSC key.

Demand route: Apply the eligibility framework and the dated rules reflected in the paper; do not substitute today's income limits or infer a key from general Section 12 categories.

Verified PYQ 2 - UPSC Mains 2023, GS Paper II, Question 2

Who are entitled to receive free legal aid? Assess the role of the National Legal Services Authority (NALSA) in rendering free legal aid in India. (10 marks, 150 words)

Answer withheld pending official UPSC key.

Demand route: Section 12 categories -> Section 13 prima facie gate -> NALSA Section 4 functions -> State/district delivery -> qualified assessment.

Verified PYQ 3 - UPSC Mains 2024, GS Paper II, Question 2

Explain and distinguish between Lok Adalats and Arbitration Tribunals. Whether they entertain civil as well as criminal cases? (10 marks, 150 words)

Answer withheld pending official UPSC key.

Demand route: statutory source -> consensual versus adjudicatory power -> civil/compoundable criminal boundary -> award and challenge. Keep detailed tribunal doctrine with Topic 46.

SIX ORIGINAL MAINS MODELS

Original Mains 1 - 10 marks, 150 words

Question: Explain how Articles 39A and 21 together support access to justice.

Article 39A directs the State to secure equal-opportunity justice and free legal aid so economic or other disability does not deny access. Article 21 makes the promise concrete where liberty and fair procedure are involved. In *Hussainara Khatoon*, the Supreme Court treated speedy trial and necessary legal assistance for an indigent accused as elements of reasonable, fair and just procedure. *Khatril (II)* required assistance from first production and remand and imposed a duty on the judge to inform the accused. *Suk Das* set aside a conviction following failure to inform and provide aid. *Anita Kushwaha* connected access with an effective, reasonably accessible, timely and affordable adjudicatory mechanism. Thus Article 39A supplies the directive foundation and Article 21 supplies enforceable fair-procedure protection. However, the precise entitlement and remedy still depend on the proceeding and the governing statute.

[ORIGINAL MAINS 1 MODEL ANSWER ALPHANUMERIC WORD COUNT: 136]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 2 - 10 marks, 150 words

Question: Distinguish an ordinary Lok Adalat from a National Lok Adalat.

An ordinary Lok Adalat is a statutory settlement forum organised under Sections 19-21 of the Legal Services Authorities Act. It may receive pending cases and eligible pre-litigation matters, excludes non-compoundable offences, and can make an award only when parties compromise. *State of Punjab v Jalour Singh* confirms that it cannot decide merits after settlement fails.

A National Lok Adalat is not a separate constitutional or appellate court. It is a coordinated nationwide exercise in which many ordinary Lok Adalat benches sit on a common date or theme under NALSA and State-level organisation. Each bench retains the same jurisdiction, consent requirement, award effect and failure route. National scale may improve awareness and disposal, but it cannot enlarge statutory power. Therefore the distinction is administrative scale, not juridical character.

[ORIGINAL MAINS 2 MODEL ANSWER ALPHANUMERIC WORD COUNT: 127]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 3 - 15 marks, 250 words

Question: Analyse the statutory architecture of free legal services under the Legal Services Authorities Act, 1987.

The 1987 Act converts Article 39A's equal-justice direction into a national-to-local delivery architecture. Section 2(1)(c) defines legal service broadly to include assistance in a case or proceeding and legal advice.

NALSA under Sections 3-4 lays down policy, frames economical schemes, allocates funds, promotes legal literacy and research, supports social-justice litigation and monitors programmes. The Supreme Court Legal Services Committee administers aid for Supreme Court matters. At State level, the SLSA implements national policy, provides services and organises Lok Adalats; the High Court Committee handles matters before that court. DLSAs implement district programmes and coordinate Taluk Committees, which provide the local access point.

Entitlement is separately structured. Section 12 creates alternative gateways for SC/ST members, trafficking or begar victims, women and children, persons with disability, specified disaster or violence victims, industrial workmen, persons in custody and persons below prescribed income limits. Section 13 requires a prima facie case to prosecute or defend.

This division combines uniform policy with decentralised delivery. Yet institutional presence does not prove meaningful access. Counsel quality, early information, language, distance and timely assistance must be assessed, consistently with *Khatri (II)* and *Anita Kushwaha*.

[ORIGINAL MAINS 3 MODEL ANSWER ALPHANUMERIC WORD COUNT: 189]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 4 - 15 marks, 250 words

Question: Distinguish ordinary Lok Adalats and Permanent Lok Adalats with reference to jurisdiction, process and legal effect.

Ordinary and Permanent Lok Adalats share a statute but not the same jurisdiction or decisional power. Under Sections 19-21, an ordinary Lok Adalat may receive a pending case or an eligible pre-litigation matter within the relevant court's jurisdiction, except a non-compoundable offence. It facilitates compromise. If settlement succeeds, the award is deemed a civil-court decree, final and binding, with no statutory appeal and court-fee refund in a referred case. If settlement fails, the case returns to court or pre-litigation parties pursue the ordinary remedy. *Jalour Singh* forbids merits adjudication.

Chapter VI-A creates a standing PLA for defined public utility services. A party must apply before bringing the dispute to court, within statutory subject and notification-sensitive pecuniary limits. Sections 22C-22D require conciliation first. If agreement fails, the PLA may decide an eligible dispute on merits only if it does not relate to an offence. *Canara Bank* confirms that the conciliation sequence cannot be skipped.

Section 22E gives the PLA award final, binding and executable deemed-decree status. Both regimes retain narrow constitutional review for foundational illegality. Thus the decisive distinction is consent-only ordinary settlement versus bounded conciliation-cum-adjudication in public-utility pre-litigation disputes.

[ORIGINAL MAINS 4 MODEL ANSWER ALPHANUMERIC WORD COUNT: 189]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 5 - 20 marks, 250 words

Question: Evaluate Family Courts and Gram Nyayalayas as specialised access-to-justice institutions.

Family Courts and Gram Nyayalayas pursue Article 39A's access objective through different statutory designs. The Family Courts Act, 1984 creates specialised urban and other notified courts after High Court consultation. Section 7 concentrates matrimonial, inter-spousal property, legitimacy, maintenance, guardianship, custody and access disputes. Section 9 prioritises settlement; Sections 10-17 adapt procedure, privacy, evidence and legal assistance while retaining a reasoned judicial decision. Section 19 provides a High Court appeal or revision structure with express exclusions.

The Gram Nyayalayas Act, 2008 enables a State, after High Court consultation, to establish rural first-instance courts. Mobile sittings under Section 9 reduce distance. Civil and criminal jurisdiction follows schedules and valid notifications; civil disputes receive a conciliation effort, but unresolved matters are adjudicated. Sections 33-34 send permitted criminal and civil appeals to the Court of Session and District Court respectively, subject to statutory limits.

Both institutions combine specialisation or proximity with judicial power, unlike a compromise-only ordinary Lok Adalat. Their promise is lower cost, less distance and relationship-sensitive procedure. Their limitation is implementation: establishment, judges, staff, infrastructure, awareness and legal-aid quality vary. They should therefore be judged by accessible and fair outcomes, not labels or disposal totals alone.

[ORIGINAL MAINS 5 MODEL ANSWER ALPHANUMERIC WORD COUNT: 195]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

Original Mains 6 - 20 marks, 250 words

Question: Assess whether India's plural alternative and specialised justice forums improve access without weakening procedural fairness.

India's plural design recognises that one forum cannot fit every dispute. Article 39A directs equal-opportunity justice, while *Anita Kushwaha* requires an effective, reasonably accessible, timely and affordable mechanism. The 1987 Act provides legal-aid authorities and ordinary Lok Adalats for consensual settlement. Chapter VI-A adds a PLA for public-utility pre-litigation disputes, with conciliation followed by bounded merits adjudication. Family Courts combine relationship-sensitive settlement with judgment; Gram Nyayalayas combine local and mobile access with scheduled civil and criminal jurisdiction.

This differentiation can reduce cost, travel, delay and adversarial harm. National Lok Adalat drives can coordinate reach, while Fast Track Courts add capacity and Special Courts focus a statutory subject. However, labels do not guarantee justice. *Jalour Singh* shows why an ordinary Lok Adalat cannot impose a compromise. *Canara Bank* shows why a PLA cannot skip conciliation. Digital formats may exclude persons lacking devices, language support, privacy or accessible interfaces. Family and local courts also need trained judges, staff and informed legal assistance.

Reform should measure counsel quality, voluntariness, time and cost saved, compliance, geographic reach and the availability of reasons and review. Plural forums improve access only when exact jurisdiction, genuine consent, natural justice and constitutional supervision remain intact.

[ORIGINAL MAINS 6 MODEL ANSWER ALPHANUMERIC WORD COUNT: 197]

Examiner note: The model uses claim -> named evidence -> analysis -> qualification and answers the directive within the ceiling.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Dispute-system design

Choose a forum by dispute need, not disposal optics. Continuing relationships may benefit from conciliation; urgent coercive relief needs a court with interim power; a recurring technical field may need specialised adjudication; a low-value local claim may need a mobile first-instance court; and a public-utility pre-litigation dispute may fit a PLA only after all statutory filters.

Consent quality and asymmetric bargaining

A signed settlement is legitimate only when parties understand consequences, can obtain advice and are free from intimidation. Women, workers, accident victims, consumers and persons in custody may face unequal information or bargaining power. Finality therefore presupposes genuine consent and does not protect fraud or jurisdictional excess.

Digital access

Electronic settlement can reduce travel and scheduling cost. It also requires identity assurance, private communication, document access, language support, disability access and a workable offline alternative. Technology should widen Article 39A access rather than become a new condition for it.

Better evaluation metrics

Count time and cost saved, but also measure early advice, competent representation, informed consent, settlement durability, compliance, rural reach, disability and language access, reasoned handling of failed settlement, staffing and effective review. A large disposal number alone cannot establish justice quality.

CONSOLIDATED REGISTER NOTES

Constitutional and case rail

- Article 39A: equal-opportunity justice and free legal aid; inserted by the Forty-second Amendment Act, 1976.
- Article 21: fair procedure and speedy trial; legal aid is rights-linked in the qualifying criminal context.
- *Hussainara Khatoon* (1979): speedy trial and necessary legal aid are part of fair procedure.
- *Khatri (II)* (1981): duty from first production/remand; court must inform the indigent unrepresented accused.
- *Suk Das* (1986): failure to inform and provide aid vitiated the conviction/trial.
- *Anita Kushwaha* (2016): effective, accessible, timely and affordable access to justice.

1987 Act decoder

Provision	Rapid recall
s 2(1)(c)	legal advice plus assistance in cases/proceedings
ss 3-4	NALSA and national functions
s 3A	Supreme Court Legal Services Committee
ss 6-7	SLSA and State functions
s 8A	High Court Legal Services Committee
ss 9-10	DLSA and district functions
ss 11A-11B	Taluk Committee and local functions
s 12	alternative eligibility categories
s 13	prima facie case entitlement gate
ss 19-21	ordinary Lok Adalat
ss 22A-22E	Permanent Lok Adalat

Ordinary Lok Adalat checklist

1. Pending or pre-litigation matter within relevant court jurisdiction.
2. Non-compoundable offence excluded.
3. Conciliation and genuine compromise only.
4. Award embodies settlement; deemed civil decree/order.
5. Final and binding; no statutory appeal; referred court fee refundable.
6. Failure: return pending case or advise pre-litigation ordinary remedy.
7. *Jalour Singh*: no adjudicatory role; narrow Articles 226/227 challenge remains.
8. National Lok Adalat: coordinated drive, not a separate constitutional court.

Permanent Lok Adalat checklist

1. Chapter VI-A, Sections 22A-22E.
2. Defined public utility service; additional services require valid notification.
3. Application before court; check offence and current notified pecuniary limits.
4. Conciliation first; formulate possible terms where settlement elements exist.
5. Failed settlement: merits only for eligible dispute not relating to an offence.
6. Section 22D: natural justice, objectivity, fair play and equity; no strict CPC/Evidence Act.
7. Section 22E: majority award, final/binding, deemed decree and executable.
8. *Canara Bank*: statutory conciliation cannot be skipped.

Family Court checklist

- Section 3 State establishment after High Court consultation.
- Section 7 family and matrimonial jurisdiction; Section 8 ordinary-jurisdiction exclusion.
- Section 9 settlement duty; unresolved disputes remain adjudicable.
- Sections 10-17 adapted procedure, privacy, legal-representation limit, useful evidence and reasons.
- Section 19 High Court appeal/revision structure with consent, interlocutory and maintenance-category limits.

Gram Nyayalaya checklist

- State may establish after High Court consultation; not a constitutionally mandatory Panchayat court.
- Nyayadhikari is a judicial officer; Section 9 provides mobile sittings.
- Civil and criminal jurisdiction follows schedules and notifications.
- Civil conciliation is attempted; failure leads to adjudication.
- Criminal appeal: Court of Session; civil appeal: District Court; statutory exclusions apply.
- Current operational numbers require dated official verification.

Thirty-second answer spine

Define forum -> cite source and section -> identify stage and subject -> test consent -> state merits power -> state award/judgment -> identify appeal or narrow review -> evaluate access, capacity and fairness -> conclude that speed is legitimate only within jurisdiction and due process.